

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 545

BY BUSINESS COMMITTEE

AN ACT

RELATING TO COUNSELORS AND THERAPISTS; AMENDING SECTION 54-3405, IDAHO CODE, TO PROVIDE FOR THE GRANTING OF LICENSURE AS A LICENSED PROFESSIONAL COUNSELOR TO CERTAIN INDIVIDUALS WHO HAVE SERVED AS A CHAPLAIN IN THE UNITED STATES MILITARY AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 54-3405A, IDAHO CODE, TO PROVIDE FOR THE GRANTING OF LICENSURE AS A LICENSED CLINICAL PROFESSIONAL COUNSELOR TO CERTAIN INDIVIDUALS WHO HAVE SERVED AS A CHAPLAIN IN THE UNITED STATES MILITARY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-3405, Idaho Code, be, and the same is hereby amended to read as follows:

54-3405. QUALIFICATIONS FOR LICENSURE. (1) Licensure as a "licensed professional counselor" shall be restricted to persons who:

(a) Have not been convicted, found guilty, or received a withheld judgment or a suspended sentence in this state or in any other state of a crime that is deemed relevant in accordance with section 67-9411(1), Idaho Code;

(b) Have submitted to a fingerprint-based criminal history background check in accordance with section 67-9411A, Idaho Code; and

(c) Have successfully completed each of the following requirements:

(i) A master's degree or higher in counseling or a related field of study, as approved by the board, that includes completion of a practicum of supervised clinical contact as defined by rule;

(ii) An examination, if required by the board's rules; and

(iii) One thousand (1,000) hours of supervised experience in counseling acceptable to the board.

(2) In accordance with the provisions of section 67-9406, Idaho Code, the provisions of subsection (1) (c) of this section shall also be deemed satisfied with respect to a person who:

(a) Is a resident of the state of Idaho;

(b) Has served as a chaplain in any branch of the United States military as evidenced by a DD form 214 certificate of release or discharge;

(c) Possesses a DD form 214 certificate of release or discharge for each period of active duty indicating time served in the United States military with honorable discharge for all periods of active duty;

(d) Has completed four (4) units of clinical pastoral education; and

(e) Has completed and possesses documentation of one thousand (1,000) hours of direct client contact under the direction of a supervisory chaplain or a supervisory counselor in any branch of the United States military.

~~(2)~~ (3) A license will not be issued to an individual whose license, certification, or registration has been revoked or suspended in this or any other state and in this or any other related field. Such an individual may not be licensed under this chapter unless the period of revocation or suspension has been completed and the board has conducted a competency review and determined that an acceptable degree of rehabilitation has been accomplished.

(4) In accordance with the provisions of section 67-9406(4), Idaho Code, a person who qualifies for licensure pursuant to subsection (2) of this section shall not be required by the board to take an examination or pay an application fee.

SECTION 2. That Section 54-3405A, Idaho Code, be, and the same is hereby amended to read as follows:

54-3405A. QUALIFICATIONS FOR LICENSURE. (1) Licensure as a "licensed clinical professional counselor" shall be restricted to persons who:

~~(1)~~ (a) Hold a valid licensed professional counselor license in good standing;

~~(2)~~ (b) Document two thousand (2,000) hours of direct client contact experience under supervision in no less than a two (2) year period as set forth in this chapter and the rules of the board;

~~(3)~~ (c) Successfully complete a written examination as approved by the board and defined in rules of the board; and

~~(4)~~ (d) Submit to a fingerprint-based criminal history background check in accordance with section 67-9411A, Idaho Code.

(2) (a) In accordance with the provisions of section 67-9406, Idaho Code, the provisions of subsection (1) (a), (b), and (c) of this section shall be deemed satisfied with respect to a person who:

(i) Is a resident of the state of Idaho;

(ii) Has served as a chaplain in any branch of the United States military as evidenced by a DD form 214 certificate of release or discharge;

(iii) Possesses a DD form 214 certificate of release or discharge for each period of active duty indicating time served in the United States military with honorable discharge for all periods of active duty;

(iv) Has completed four (4) units of clinical pastoral education; and

(v) Has completed and possesses documentation of two thousand (2,000) hours of direct client contact under the direction of a supervisory chaplain or a supervisory counselor in any branch of the United States military.

(b) In accordance with the provisions of section 67-9406(4), Idaho Code, a person who qualifies for licensure pursuant to this subsection shall not be required by the board to take an examination or pay an application fee.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.